Legal aspects of IT security
Master in cybersecurity

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Data Protection Law

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Summary

I. Legal Basis of Data Protection Law
II. General Data Protection Regulation (GDPR)

I. Legal basis of Data Protection Law

1. CoE Level
2. UE Level
3. National Level

I. Legal basis of Data Protection Law
1. CoE Level

- ECHR*
- Convention 108+ (and Additional Protocol)
- Recommendations

I. Legal basis of Data Protection Law
1. CoE Level

Is right to data protection a fundamental right according to ECHR?

No BUT it is <u>a part of right to privacy</u>

"*The protection of personal data is of fundamental importance to a person's enjoyment of his <u>right to respect for private and family life</u>*"

(ECHR, *S. and Marper v. the United Kingdom*, § 41)

I. Legal basis of Data Protection Law
2. UE Level

- EU Charter of Fundamental Rights*
- Directive 95/46/EC on the protection of individuals with regard to the processing of personal data and on the free movement of such data

AND …

- General Data Protection Regulation

I. Legal basis of Data Protection Law
2. UE Level

- **EU Charter of Fundamental Rights**

"1. Everyone has <u>the right to the protection of personal data</u> concerning him or her.

2. Such data must be processed fairly for specified purposes and on the basis of the consent of the person concerned or some other legitimate basis laid down by law. Everyone has the right of access to data which has been collected concerning him or her, and the right to have it rectified.

3. Compliance with these rules shall be subject to control by an independent authority" (art. 8)

I. Legal basis of Data Protection Law
3. National Level

- ~~Loi du 8 décembre 1992 relative à la protection de la vie privée à l'égard des traitements de données à caractère personnel~~

- **Loi du 30 Juillet 2018 relative à la protection des personnes physiques à l'égard des traitements de données à caractère personnel (*M.B.*, 5 septembre 2018)**

II. General Data Protection Regulation

1. **Background**
2. **Key Definitions**
3. **Scope**
4. Principles
5. Rights of the data subject
6. General obligations of the controller and the processor
7. Security of personal data

II. General Data Protection Regulation
1. Background

"*Rapid technological developments and globalisation have brought new challenges for the protection of personal data. The scale of the collection and sharing of personal data has increased significantly. Technology allows both private companies and public authorities to make use of personal data on an unprecedented scale in order to pursue their activities. Natural persons increasingly make personal information available publicly and globally.*

Technology has transformed both the economy and social life, and should further facilitate the free flow of personal data within the Union and the transfer to third countries and international organisations, while ensuring a high level of the protection of personal data" (GDPR, recital n° 6).

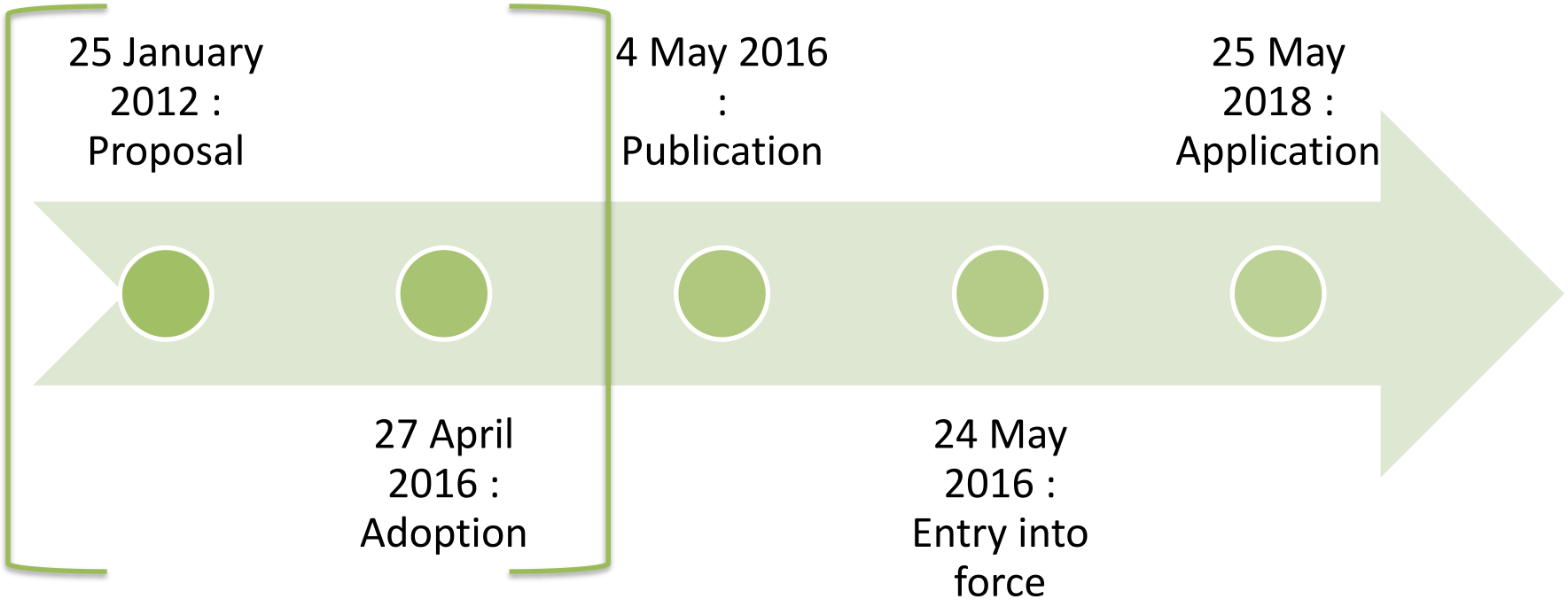
II. General Data Protection Regulation
1. Background

- Technological developments
- Globalisation
- Increase of the scale of the collection and sharing
- Increase of making personal information available publicly and globally
- Facilitation of the free flow of personal data

-> New challenges for data protection

-> Need for strong and more coherent data protection framework : GDPR

I. General Data Protection Regulation
1. Background



Legislative procedure*

II. General Data Protection Regulation
1. Background

European Legislative Procedure

Key actors :

- European Commission
- European Parliament
- Council of the European Union

Informal negotiation during « Trilogues »

II. General Data Protection Regulation
2. Key Definitions

A. Personal Data
B. Processing
C. Controller
D. Processor

II. General Data Protection Regulation
2. Key Definitions – A. Personal Data

What Is a Personal Data?

Let’s see your intuition!

II. General Data Protection Regulation
2. Key Definitions – A. Personal Data

"*any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person*"

(GDPR, art. 4, (1))

4 Key Constituent Elements :

- Any Information
- Relating to
- Identified or Identifiable
- Natural Person

II. General Data Protection Regulation
2. Key Definitions – A. Personal Data

- **Any Information**

-> Wide scope

- Private and Public Information
- Objective and Subjective Information
- Private Life, Professional Life and Commercial Activities
- Any Form of Information*

II. General Data Protection Regulation
2. Key Definitions – A. Personal Data

- **Any Information**

- Any Form of Information*

"*genetic data : personal data relating to the inherited or acquired genetic characteristics of a natural person which give unique information about the physiology or the health of that natural person and which result, in particular, from an analysis of a biological sample from the natural person in question*"
(GDPR, art. 4, (13))

"biometric data : personal data resulting from specific technical processing relating to the physical, physiological or behavioural characteristics of a natural person, which allow or confirm the unique identification of that natural person, such as facial images or dactyloscopic data"
(GDPR, art. 4, (14))

II. General Data Protection Regulation
2. Key Definitions – A. Personal Data

- **Relating to**

-> Broad view

Relating to = « *the information, by reason of its content, prupose or effect, <u>is linked to</u> a particular person* »

(CJEU, *Nowak case*, C-434/16, §35)

II. General Data Protection Regulation
2. Key Definitions – A. Personal Data

- **Identified or Identifiable**

-> Flexible approach

Singling out ≠ civil identity

What about anonymous data?

« *If the identification of the data subject is prohibited by law or practically impossible on account on the fact that it requires a disproportionate effort in terms of time, cost and man power, so that the risk of identification appears in reality to be insignificant* »

(CJEU, *Breyer case*, C-582/14, §46)

II. General Data Protection Regulation
2. Key Definitions – A. Personal Data

- **Natural Person**

2 exemptions :

- Deceased persons
- Corporations, partnerships, other legal/juristic persons

II. General Data Protection Regulation
2. Key Definitions – B. Processing

"*any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction*"

(GDPR, art. 4, (2))

II. General Data Protection Regulation
2. Key Definitions – B. Processing

-> Broad definition : From Data Collection to Data Destruction

! The operation can be a done-off operation

« Such as » : the list is NOT exhaustive

What is your intuition?

II. General Data Protection Regulation
2. Key Definitions – B. Processing

Data Processing Medium and Form are Irrelevant

- **Automated Processing** = « *all processing done by means of computer technologies* »
- **Manual Processing** = « *any data processing operation executed by humans without the use of computing devices* ».

Manual Processing falls within the material scope of GDPR if :

- the personal data must be contained (or intented to be contained) in a « filling system »* (GDPR, art. 2, 1°)

- the « filling system » in which the data are contained must be structured according to specific criteria (GDPR, art. 4, 6°)

II. General Data Protection Regulation
2. Key Definitions – B. Processing

Filling system = *“ any structured set of personal data which are accessible according to specific criteria, whether centralised, decentralised or dispersed on a functional or geographical basis*” (GDPR, art. 4, 6°)

II. General Data Protection Regulation
2. Key Definitions – C. Controller

"the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for its nomination may be provided for by Union or Member State law"

(GDPR, art. 4, (7))

II. General Data Protection Regulation
2. Key Definitions – C. Controller

-> The one who exercices control over the data processing

Control = determination of purposes and means* of the processing

Decisive : factual control

Case-by-case interpretation

II. General Data Protection Regulation
2. Key Definitions – C. Controller

Determination of purposes and means

- Determination = having influence on
- Purposes = « why » of processing
- Means = « how » of processing

What about delegations?

- Delegation of the determination of purposes : change of controller
- Delegation of the determination of means : essential elements >< minor elements

II. General Data Protection Regulation
2. Key Definitions – D. Processor

"*a natural or legal person, public authority, agency or other body which processes personal data on behalf of the controller*"

(GDPR, art. 4, (8))

II. General Data Protection Regulation
2. Key Definitions – D. Processor

- « on behalf of the controller » : legally separate from the controller

- WP 29 : delegation of the ability to determine <u>minor</u> particular technical and organisational aspects of the « means » of processing

II. General Data Protection Regulation
3. Scope

A. Material Scope
B. Territorial Scope

II. General Data Protection Regulation
3. Scope – A. Material Scope

"This Regulation does not apply to the processing of personal data:

(a) in the course of an activity which falls outside the scope of Union law;

(b) by the Member States when carrying out activities which fall within the scope of Chapter 2 of Title V of the TEU;

(c) by a natural person in the course of a purely personal or household activity;

(d) by competent authorities for the purposes of the prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties, including the safeguarding against and the prevention of threats to public security"

(GDPR, art. 2, §2)

II. General Data Protection Regulation
3. Scope – A. Material Scope

Ilustrations (« could include ») of purely personal or household activity (GDPR, recital n° 18):

- ✓ correspondence
- ✓ the holding of addresses
- ✓ <u>social networking</u>
- ✓ online activity undertaken within the context of such activities.

II. General Data Protection Regulation
3. Scope – A. Material Scope

- Is Social Networking for purely personal or household activity automatically excluded from the GDPR Material Scope?

- What about controllers and processors?

II. General Data Protection Regulation
3. Scope – A. Material Scope

- **Is Social Networking for purely personal or household activity automatically excluded from the GDPR Material Scope?**

-> Data accessible to an unlimited number of people, still purely personal or household activity?

Criteria* established by the WP 29

II. General Data Protection Regulation
3. Scope – A. Material Scope

- **Is Social Networking for purely personal or household activity automatically excluded from the GDPR Material Scope?**

« *- Is the personal data disseminated to an indefinite number of persons, rather than to a limited community of friends, family members or acquaintances ?*

- Is the personal data about individuals who have no personal or household relationship with the person posting it ?

- Does the scale and frequency of the processing of personal data suggests professional or full-time activity ?

- Is there evidence of a number of individuals acting together in a collective and organised manner ?

- Is there a potential adverse impact on individuals, including intrusion into their privacy ? »

II. General Data Protection Regulation
3. Scope – A. Material Scope

- **What about controllers and processors?**

"*However, this Regulation applies to controllers or processors which provide the means for processing personal data for such personal or household activities*" (GDPR, Recital n° 18)

II. General Data Protection Regulation
3. Scope – B. Territorial Scope

"*1. This Regulation applies to the processing of personal data in the context of the activities of an establishment of a controller or a processor in the Union, regardless of whether the processing takes place in the Union or not.*

2. This Regulation applies to the processing of personal data of data subjects who are in the Union by a controller or processor not established in the Union, where the processing activities are related to: (a) the offering of goods or services, irrespective of whether a payment of the data subject is required, to such data subjects in the Union; or (b) the monitoring of their behaviour as far as their behaviour takes place within the Union.

3. This Regulation applies to the processing of personal data by a controller not established in the Union, but in a place where Member State law applies by virtue of public international law" (GDPR, art. 3).

II. General Data Protection Regulation
3. Scope – B. Territorial Scope

Not relevant :

- Data subject’s nationality or residence place
- Data location
- Processing location

II. General Data Protection Regulation
3. Scope – B. Territorial Scope

“ in the context of the activities of an establishment of a controller or a processor in the Union”

- **Establishment** = any real and effective activity, however small, carried out by means of a permanent establishment
- **Activities** : broad interpretation

What if a controller is based outside EU but the processor is based in EU?

II. General Data Protection Regulation
3. Scope – B. Territorial Scope

2 criteria for processors not established in the Union :

- Offering goods or services to data subjects in the Union
- Monitoring the behaviour of data subjects that takes place within the Union

II. General Data Protection Regulation
3. Scope – B. Territorial Scope

- **Offering goods or services to data subjects in the Union**

-> Does the controller or processor envisage offering services to data subjects in one or more Member States in the Union? (GDPR, recital n° 23)

Case-by-case interpretation

Main criteria :

- the mere accessibility of the controller's, processor's or an intermediary's website in the Union

- the mere accessibility of an email address or of other contact details

- the use of a language generally used in the third country where the controller is established

Other criteria :

- the use of a language or a currency generally used in one or more Member States with the possibility of ordering goods and services in that other language

- the mentioning of customers or users who are in the Union, may make it apparent that the controller envisages offering goods or services to data subjects in the Union

II. General Data Protection Regulation
3. Scope – B. Territorial Scope

- **Monitoring the behaviour of data subjects that takes place within the Union**

"*In order to determine whether a processing activity can be considered to monitor the behaviour of data subjects, it should be ascertained whether natural persons are tracked on the internet including potential subsequent use of personal data processing techniques which consist of profiling a natural person, particularly in order to take decisions concerning her or him or for analysing or predicting her or his personal preferences, behaviours and attitudes*" (GDPR, recital n° 24)

-> profiling of data subjects using data collected

✓ behavioural advertising

Any questions?

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Thank you for your attention!

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